kakadu
NATIONAL PARK

Image Tourism NT

Commercial Image Capture and Use Guidelines

Kakadu National Park

Australian Government
Parks Australia

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INTRODUCTION

'Kakadu is my home, with special places and special stories...'

Aboriginal Traditional Owner.

Kakadu National Park (Kakadu) is Aboriginal Land, jointly managed between the Australian Government and the Bininj/Mungguy people for who Kakadu has been home for thousands of years. World Heritage listed for both its outstanding natural and cultural values, Kakadu is recognised universally as a place with:

- a living Aboriginal culture;
- extraordinary natural landscapes and a rich variety of plants and animals;
- enriching and memorable experiences for visitors; and
- a strong and successful partnership between Traditional Owners, governments and the tourism industry, providing world's best practice in caring for country and sustainable tourism.

Kakadu covers an amazing 20,000 km^2 (Map attachment 1, p. 15) showcasing ancient rock art sites, abundant wildlife and spectacular landscapes. Both cultural and natural elements provide a profound visual and spiritual experience for visitors. Kakadu's complex ecosystem provides habitats for a wide range of plant and animal species. About one third of Australia's bird species are found in the park.

These guidelines provide information on the requirements for conducting commercial image capture and sound recording in Kakadu National Park, established and managed under the *Environment Protection Biodiversity Conservation Act 1999* (the EPBC Act).

Image Tourism NT

WHY SHOULD I CHOOSE KAKADU FOR MY PROJECT?

'I want visitors to feel something they'll never forget – and have in their heart and mind forever'

Senior Jawoyn Traditional Owner.

Kakadu National Park is a timeless place.

From the mangrove-fringed tidal plains in the north to the flood plains, the lowland hills and the sandstone cliffs of the Arnhem Land escarpment, it is a place which changes with the seasons. Bininj recognise six distinct seasons in the North, Mungguy appreciate five seasons in the south. From swollen floodplains and thundering waterfalls during *Gudjewg* (the monsoon season Dec-Feb) to crystal billabongs carpeted with lilies in *Yekke* (cool weather time May-June) to waterholes crowded with birdlife in *Wurrgeng* (dry season June to August). The land takes on different forms and different colours with the passing of each season.

Kakadu has been home to Aboriginal people for more than 50,000 years. Here a culture rich in spirituality, tradition and respect has cared for the land. Sharing and looking after country have always been part of the Kakadu story.

Some examples of projects that have been successfully undertaken within Kakadu include:

- Photojournalism for travel magazines and online media
- Professional landscape photography
- Film and photography for travel blogs, YouTube and other social media
- Film and photography for advertising and marketing (see Advertising, Marketing and Product Placement)
- Film for travel shows and other television programs
- Film for documentaries and feature films.

For more information on Kakadu visit www.parksaustralia.gov.au/kakadu

COMMERCIAL IMAGE CAPTURE AND USE - PERMITS AND LICENCES

To help preserve Kakadu's World Heritage values, certain activities such as commercial image capture and sound recording require a permit or a licence. Visitors must apply for a permit or licence when conducting filming, photography, sound recording or art in Kakadu for commercial purposes.

Commercial purposes means carrying out an activity with intent of a reward, i.e. money, merchandise or services, or the possibility of future reward — if done for financial reward or commercial gain, under contract or consignment for another person, and/or with a view to being sold or hired out, or for promotion/advertising of a product or service.

For tips on conducting a successful project in Kakadu, see Attachment 2 on page 16.

PERMITS

Permits are suitable for simple, smaller scale commercial photographers, film crews and sound recorders that typically pose a lower risk to the cultural and natural values of Kakadu. While size is not the only factor, as a general rule permits are issued to crews of up to three people with little or no requirement for props, sets or other equipment beyond their recording devices, nor would they interfere with the day-to-day operation of visitor sites or impact on other visitors' experiences.

The location and complexity of the project is also a consideration. Permits are required for projects that seek to conduct image capture or sound recording in Kakadu's public access areas (refer to map p. 15) over a period up to five days. In addition to this, permit holders do not require any supervision, assistance or involvement from Kakadu staff and/or Traditional Owners.

	PHOTOGRAPHY PERMITS	**FILM PERMITS**
Suitable for...	(Small) Photo and film crews of no more than 3 people (short timeframe) for up to 5 days in public access areas of Kakadu.	
Processing Time	up to (14 days)	
Permit Fee	$30/day or part thereof	$250/day or part thereof
Use of Sets, Props, structures and Other Equipment	No use of sets, props, structures or other equipment beyond photographic/film/recording devices.	
Kakadu Staff and Traditional Owner Assistance/Supervision	No requirement for any involvement of Kakadu staff and/or Traditional Owners.	
Use of Kakadu Equipment and Infrastructure	No requirement for the use of any Kakadu plant, equipment and/or infrastructure.	

LICENCES

Commercial Image Capture Licence Agreements are better suited to larger image capture projects within the park. These licences can accommodate more complex needs such as working with Traditional Owners, accessing more remote areas, setting up significant equipment or product placement, promotions and advertising.

Licensed projects typically involve greater involvement from the park than that of a permit holder as they call for larger crews (generally 4 people or more) and/or require props, sets or other equipment other than recording devices for their project to proceed. Licences are also essential for projects that seek to access a variety of areas in the park, including areas not usually open to the public, or for projects that wish to work in the park for an extended period of time (over 5 days). Additionally, licensed projects call for greater involvement of Kakadu staff, infrastructure and equipment, in addition to the services of Traditional Owners.

Licence applications will be assessed against a number of criteria which are used to ensure all projects align with Kakadu's World Heritage values, plan of management and the wishes of the Traditional Owners. Please note that processing times for licence applications are longer than that of a permit as the complexity of the project is usually much greater. Examples of projects that require greater processing times can include requests for Kakadu staff and/or Traditional Owner involvement and accessing restricted areas (see Accessing Restricted Areas).

Examples of the criteria that permit and licence applicants must address to gain approval are:

- How does the proposed project align with Kakadu's World Heritage values, plan of management and the wishes of the Traditional Owners?
- How will Kakadu's Aboriginal Traditional Owners benefit? Have you considered engaging with local businesses or employment opportunities for Bininj/Mungguy?
- Are the proposed locations able to accommodate the project without being subject to damage, or significant environmental or cultural impact?
- What are the potential risks arising from the project? How will these risks be managed/mitigated?

Please keep in mind that all criteria are listed in the application package, and must be addressed in full in order for your application to be processed.

Today Show live at Anbangbang Billabong.

ABC Kakadu series — Courtesy Northern Pictures.

	LICENCES
Used for...	These are typically large, more complex projects with crews of 4 people or more for a period of over 5 days. Some advertising, promotion or product placement projects may also require a licence.
Processing Time	(up to) 8 Weeks
Application Fee (non-refundable)	A fee of $200 on application.
Licence Fee	To be determined on application based on project requirements could include fees for staff supervision or "talent source", Traditional Owner involvement or exclusive site use.
Use of Sets, Props, structures and Other Equipment	The use of sets, props, structures or other equipment in addition to filming/recording devices.
Kakadu Staff and Traditional Owner Assistance/Supervision	A requirement for involvement of Kakadu staff and/or Traditional Owners.
Use of Kakadu Equipment and Infrastructure	A requirement for the use of Kakadu plant, equipment and/or infrastructure.

**An annual licence is also available for frequent visit independent photographers. This will allow photographers to come and go as they please into open publicly accessible areas, apply annually and undertake an annual online media briefing as opposed to each visit. Photographers can choose which is more beneficial to them, whether they opt for the $30/day permit or apply for an annual licence at a negotiated fee. To confirm eligibility for this licence, contact the Media and Communications Officer on (08)89381140 or kakadu.permits@dcceew.gov.au

PLANNING YOUR PROJECT

TOURISM AUSTRALIA AND TOURISM NT SPONSORED PROJECTS

Familiarisation visits are a great way to experience the Northern Territory first-hand. Tourism NT and Tourism Australia invite media to come to the Territory and discover it for themselves, and in turn asks media to write an article, series of articles, blog, or produce a television program based on their experience. Both organisations may be able to provide financial support for visiting media and if supported, the Kakadu permit/licence fee will generally be waivered.

Contact

Tourism NT
Media.TourismNT@nt.gov.au or
https://www.tourismnt.com.au/industry-toolkit/tourism-distribution/hosting-familiarisations

Tourism Australia -
internationalmedia@tourism.australia.com

https://www.tourism.australia.com/en/resources/resources-for-media/media-hosting-program.html

PUBLIC LIABILITY INSURANCE

Kakadu is wild. Public liability insurance of $20 million (AUS) is in most instances a requirement for commercial image capture projects, both permits and licences. If your project is sponsored by Tourism NT or Tourism Australia, you will usually be covered under the organisation insurance of these agencies. If your project is of low risk and small crew, you can apply for a lesser amount of insurance. During your application, please discuss your options with the Tourism and Visitor Services unit.

Images courtesy Northern Pictures from ABC Kakadu series.

KAKADU'S COMMERCIAL IMAGE CAPTURE APPLICATION PROCESS

Visit our website at www.parksaustralia.gov.au/kakadu
for information on the park, visitor sites and maps.

Download and read the *Guidelines to Conduct Commerical Image Capture and Sound Recording in Kakadu National Park*.
http://www.dcceew.gov.au/parks-heritage/national-parks/kakadu-national-park/permits-licences-and-leases/media-and-artists

Make a decision on whether a permit or licence would be best suited for your project.

If you are not sure, do the online questionnaire or contact the Media and Communications Officer
(08) 8938 1140 or kakadu.permits@dcceew.gov.au

The Media and Communications Officer will confirm the receipt of your applications, and follow-up with any further informational requests.

The Media and Communications Officer will commence processing your application.

Permit applications will usually take up to 14 days to process.	Licence applications can take up to 8 weeks depending on the complexities of the project.

Approval of your permit/licence.

Conduct Pre-Activity Media Briefing.

Permit holders can either complete the online media briefing or meet with Kakadu staff.	Licence holders will be required to attend a meeting at our Bowali Visitor Centre.

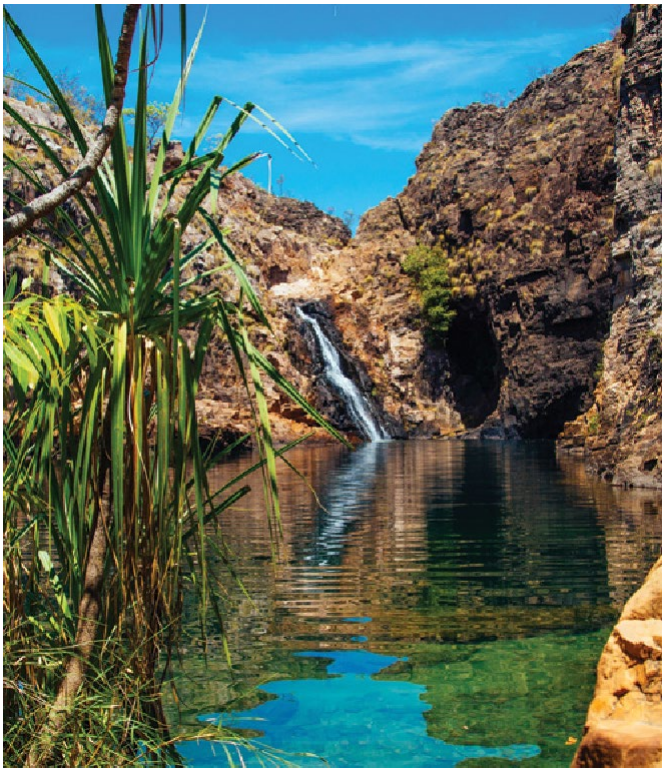
You are now ready to conduct commerical image capture in Kakadu.

WHEN DO YOU NOT NEED A PERMIT OR LICENCE?

You do not need a permit or licence when:

- Images or sound captured are for personal use (but you will need a commercial image use permit if you later decide to use the images or sound commercially).
- Kakadu permitted or licensed commercial tour operators that wish to capture images to promote their business.
- Members of the media and media organisations capture images or sound in connection with reporting news of the day. However, members of the media require approval from the Director of National Parks prior to arrival. For more information visit: https://parksaustralia.gov.au/kakadu/media
- All visitors to Kakadu are required to adhere to applicable Northern Territory and Commonwealth legislation, and follow the directions of Kakadu staff and signage. Additionally, Kakadu visitors should respect the customs and laws of the Traditional Owners of the area.

For more information on respecting traditional culture visit: https://parksaustralia.gov.au/kakadu/discover/culture



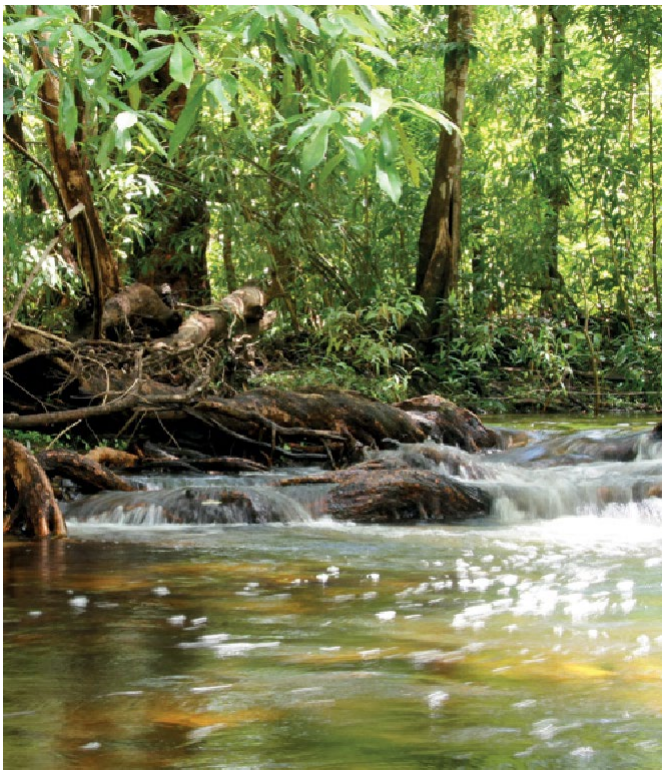
DO I NEED TO BUY A PARK PASS?

If you are in Kakadu for work and have been granted a permit or licence to conduct your activity, you do not need to buy a park pass. Park passes are required by all other visitors into Kakadu. All revenue raised from their sale contributes directly to Kakadu's running costs and helps to maintain the park's fantastic environment and tourism services.

HOW CAN I OBTAIN IMAGES WITHOUT TRAVELLING TO KAKADU?

If you require images of Kakadu but are not lucky enough to visit the park, it is possible to download some of our images from our catalogue. However, this is still subject to permit approval. For more information on Kakadu's image catalogue, please visit: https://parksaustralia.gov.au/kakadu/media

Alternatively, Tourism NT has an incredible image library which includes a great collection of Kakadu. Please visit: http://imagegallery.tourismnt.com.au



HOW DO I APPLY FOR A PERMIT OR LICENCE?

Application packages for both permits and licences can be downloaded from https://www.dcceew.gov.au/parks-heritage/national-parks/kakadu-national-park/permits-licences-and-leases/media-and-artists Please read through the permit/licence conditions and complete the application form attached.

Completed applications are to be sent to the Tourism and Visitor Services Section of Kakadu using the following email address: kakadu.permits@dcceew.gov.au.
Any application that is not completed in full cannot be processed, so it is strongly suggested that the appropriate time is spent providing all information relevant to each question. Please keep in mind that the Tourism and Visitor Services Team is here to help, and would be happy to answer any questions regarding your application.

DO I NEED TO ATTEND A PRE-ACTIVITY BRIEFING / INDUCTION?

Once your permit/licence has been approved, you and your staff (if any) are required to take part in a media briefing before you commence your project. However, the mode of delivery can vary depending on the size and complexity of your project.

For **permit** holders, future briefings will be offered online through a questionnaire or in person by a park staff member or an approved Tourism NT representative or tour operator (briefing options will be discussed upon approval of your application). Licence holders however, must conduct a briefing in person. Briefings are conducted at the Bowali Visitor Centre between business hours of 8am to 5pm, Monday to Friday.

CONDITIONS: PERMITS & LICENCES

Your image capture or sound recording activity may be subject to conditions that help to identify, protect, conserve and manage the values of Kakadu. This is a system through which industry and the public can share in the responsibilities of managing and protecting Kakadu.

For the full list of standard commercial image capture and sound recording permit conditions, please visit https://www.dcceew.gov.au/parks-heritage/national-parks/kakadu-national-park/permits-licences-and-leases/media-and-artists. Please note that Kakadu reserves the right to include additional permit conditions to the list, depending on the proposed activity.

Licence agreements are designed to cater for complex and varying activities within Kakadu. Therefore, licence conditions are tailored to suit the agreement between Kakadu and the applicant, and will be made available once it has been confirmed that a licence is required for your project.

IS ADVERTISING, PROMOTION OR PRODUCT PLACEMENT PERMITTED?

Applications for advertising projects that do not align with Kakadu's World Heritage Listed natural and cultural values, or are beyond the purposes of tourism and the promotion of Kakadu are generally not approved. Any project that wishes to use images of Kakadu for advertising purposes will require a licence and must address this in their responses to the selection criteria in the application package. The selection criteria ensures any proposed project aligns with Kakadu's World Heritage values, Management Plan and the wishes of the Traditional Owners.

Images that contain any promotional material, such as banners or signs, or blatant/intentional product placement will not be approved unless prior written approval has been obtained.

WHAT IF I AM AN OVERSEAS APPLICANT?

Overseas applicants, please note that the *Migration Act 1958* requires you to obtain an appropriate visa. For further information visit www.immi.gov.au or email entertainment.visas@immi.gov.au to ascertain which visa is appropriate.

HOW DO I WORK WITH BININJ / MUNGGUY?

"I don't think that many people know that this is Aboriginal land. This is our home...our backyard. We live here. It's wonderful for us when people respect that."

Mandy Muir, Murrumbur Clan

Bininj/Mungguy are proud to share parts of their country with visitors, particularly to those who are interested in learning about their culture and the land. Some of the ways that film and media crews have successfully engaged with Traditional Owners in the past are as follows:

- Supervision, interviews and interpretation at art sites
- Promotion of Aboriginal businesses - Kakadu offers unique opportunities to connect with Aboriginal culture through a range of independent commercial tours. These tours are designed to enlighten and inform, and the filming or photography of the tour experience may be arranged. Visit https://parksaustralia.gov.au/kakadu/do/tours/ to explore the different tours available.
- Informal training or work experience

If you wish to work with Bininj/Mungguy and include cultural content in your project, we strongly recommend reviewing Screen Australia's *Pathways and Protocols — A filmmakers guide to working with Indigenous peoples, culture and concepts* at www.screenaustralia.gov.au/about-us/doing-business-with-us/indigenous-content/indigenous-protocols

This guide was produced to provide advice about the ethical and legal issues involved in transferring Indigenous cultural material to the screen.

WHERE AM I ALLOWED TO GO IN KAKADU?

In general, image capture and sound recording activities are only permitted in public access areas. Public access areas are all of the places in Kakadu that are open for visitors without having to gain special permission. They include our three iconic rock art sites, Burrungkuy (Nourlangie), Ubirr, and Nanguluwurr, as well as the other marked areas on the map (see Map p. 15).

Filming at rock art sites requires park supervision unless you are escorted by a Traditional Owner, an accredited tour guide or approved Tourism NT representatives. Public access areas also include marked walking tracks and roads, but this does not include bushwalks. Unless you have prior permission, anywhere that does not have clearly marked roads or tracks should be avoided to ensure you don't get into trouble.

As Kakadu is a living cultural landscape, some areas of the park can be closed to visitors from time to time to allow for traditional Aboriginal use. This includes areas for housing, as well as traditional hunting and ceremony, while other areas are closed because they contain sites of cultural importance or significance. Although most visitors travel to Kakadu to learn about traditional Aboriginal culture, it is important to remember that these areas can be home to many people, and should not be entered without permission. Entering these areas would be no different to a stranger entering your home or backyard.

Your project may request access to restricted areas which will be subject to consultation with relevant Traditional Owners, a review by the *Aboriginal Areas Protection Authority (AAPA)* as per the *Northern Territory Aboriginal Sacred Sites Act 2013* and Environmental Impact Assessments. Longer project timeframes may be required for these reviews. Costs associated with such reviews will be at the expense of the proponent.

Image: Tourism NT

CAN I CONDUCT AERIAL FILMING AND PHOTOGRAPHY?

An excellent way to see Kakadu is by air. By conducting aerial filming, it allows people to gain an appreciation of Kakadu's vast landscape and beauty. However, if any image capture or sound recording activity is to take place from an aircraft, the pilot must fly in accordance with the Kakadu Fly Neighbourly Agreement.For more information on the Kakadu Fly Neighbourly Agreement visit https://www.dcceew.gov.au/parks-heritage/national-parks/kakadu-national-park/publications/fly-neighbourly-agreement-kakadu-national-park

DRONE USE

While drones and other remote aerial devices have become increasingly popular in recent years, it is important to note that the use of these devices contravenes with the *Environment Protection Biodiversity Conservation Act 1999* (the EPBC Act). **Proposals for the use of drones will be assessed on a case-by-case basis, and consideration will only be given if the use of this technology assists in the accurate portrayal of the experiences on offer in the park and is supported by Traditional Owners.**
**Please allow up to 8 weeks processing times for all drone use requests*

FINALISING YOUR PROJECT

"People need to come here and relax, sit on the country, feel the spirits of this country and go home and feel the same way."

Natasha Nadji — Bunitj Clan

Image: Tourism NT

CONFIRMING PLACE NAMES

Image capture and sound recording crews that visit Kakadu are often extremely busy, and expected to cover great distances and many locations. Kakadu acknowledges that, at times, it can be impossible to record every bit of information while you are working, or sometimes it is difficult to match correct place names to the images you have captured. The Tourism and Visitor Services Team would be happy to assist you with any factual inquiries regarding Kakadu, so please do not hesitate to ask if you have any doubts with the information you have collected or sourced.

HOW CAN I ENSURE THE IMAGES I HAVE CAPTURED ARE APPROPRIATE?

While most crews that work in Kakadu have nothing but the best of intentions, at times images are captured that do not align with the values of the park. Unfortunately, we are not able to give permission to publish these images, and we will work to ensure other images are approved which are more suitable.

Images that do not receive permission to be published typically involve:

- Dangerous behaviour or activities that contravene the permit/licence conditions and/or relevant legislation. This includes accessing areas that are not stated on your permit/licence, climbing on rocks and cliffs, and entering or approaching water in areas not open to swimming.
- Inappropriate or offensive behaviour. Images that show sensitive sites or people who have passed away can be offensive to Traditional Owners, and may not be considered appropriate. Any activity or behaviour that is perceived to be insensitive, inappropriate or offensive to others will not be approved.
- Portraying messages/images which are inaccurate or out of context. We want to ensure that any published messages or images of the park are accurate, and do not depict Kakadu in a manner that is not possible for other visitors to experience. An example of this would be showing images of fast-flowing waterfalls in an article/story which discusses visitation in the drier months — most of Kakadu's waterfalls do not flow all year around.
- Any blatant product placement, advertising or promotion that is not previously approved.
- Any image or activity that does not align with the natural and cultural values of Kakadu, as a World Heritage Listed national park.

AM I ABLE TO MODIFY IMAGES OF KAKADU?

To ensure all images portray Kakadu accurately, we ask that no image is modified or altered in any way beyond what is possible using the functions on your camera.

Additionally, any resizing or cropping of images, particularly images of art and/or culturally significant sites, should only be done so with advice from the Tourism and Visitor Services Team.

DO THE IMAGES I CAPTURED REQUIRE APPROVAL PRIOR TO PUBLICATION?

Unless included as a condition of use, it is not necessary to provide images to Kakadu for prior approval. However, permit/licence holders must submit all images to that will be used for advertising a film/television broadcast or for promotional purposes to kakadu.permits@dcceew.gov.au for consideration prior to publication and use.

AM I ABLE TO USE THESE IMAGES ON ANOTHER PROJECT IN THE FUTURE?

The images captured under one permit/licence may only be used for the purposes stated in your application. If you wish to use any images for another project in the future, another permit/licence must be obtained from Kakadu prior to their use. In addition to this, if another person wishes to use your images for a separate project, a permit/licence must also be obtained.

This is to ensure that all Kakadu imagery used in future projects align with our World Heritage values, and that no image is published which could be deemed as inappropriate or offensive to Traditional Owners or the general public.

We hope these guidelines have assisted you with understanding Commercial Image Capture in Kakadu — we look forward to working with you soon.

Tourism & Visitor Services Unit, Kakadu National Park

kakadu.permits@dcceew.gov.au

(08) 8938 1140

ATTACHMENT 1 – MAP

ATTACHMENT 2 – TIPS FOR CONDUCTING COMMERCIAL IMAGE CAPTURE WITHIN KAKADU

The following set of recommendations for conducting commercial image capture within Kakadu have been designed to ensure all visitors have safe and memorable experiences that are not at the detriment of the park, other visitors or the people living within the park boundaries. These recommendations are to be used in conjunction with the conditions issued with each permit/licence.

Please remember this is not an exhaustive list of things you should be aware of, and if you are ever in doubt as to whether a certain activity would be permitted in Kakadu when planning your visit, feel free to contact the Tourism and Visitor Services Team.

1. Avoid taking unnecessary risks. Be sure to adhere to all signs or instructions given by Kakadu and its staff. This includes sticking to marked roads/tracks.
2. Kakadu is crocodile country. Around rivers, lakes and all other waterways, stay well clear from the water's edge and follow the direction of the signs in that area. If there are no signs, assume it is not safe to enter the water. Be Croc Wise.
3. Climbing on rocks/cliffs, or approaching cliff edges is also something to avoid.
4. Leave nature in its natural state. While it may seem harmless to feed an animal or to pick some flowers, it can have serious consequences. In fact, it is actually illegal to feed or interfere with animals, or to remove or break plants and other objects in a national park.
5. Drones and other remote aerial control devices are not typically permitted. We ask that these types of equipment be left at home. Please refer to Aerial Filming and Photography on page 12 for more information.
6. Be respectful of others. This includes other visitors as well as your crew. Please ask for permission to photograph/film someone, and be respectful of their space — try to keep some distance between the camera and their face. Also, make sure you have not left equipment where people could trip, and ensure your crew is given adequate rest, water and shade.
7. Be aware of the other people around you. If other visitors are present, it could be a good opportunity for some free promotion. Feel free to speak with them, and answer any they might have.
8. Make sure you have your permit/licence and conditions with you at all time while you are in the park as rangers and compliance officers may ask for them.
9. Have emergency plans in place. It is important to plan for all conceivable emergencies while in Kakadu, and this would include ensuring you have a way to call for help if something goes wrong. Emergency Call Devices (ECDs), satellite phones and two-way radios could prove to be invaluable in these circumstances. Licence applicants may be required to conduct a thorough risk assessment and submit risk management plans prior to approval.
10. Make sure you have permission to carry-out all planned activities. If you intend to film at one of our rock art sites or enter a restricted area, make sure you have organised for the appropriate supervision.
11. Be willing to compromise. Sometimes, various events can cause delays or even closures to areas of the park. If this happens to you, try to remember that Kakadu is a big place, and we are always happy to work with you to find an agreeable solution.
12. Value the differences in culture. Kakadu is a multicultural society that benefits from the accumulated knowledge of various backgrounds. Please keep in mind that while things may be done a little differently to what you are used to, it is because we have the benefit of being able to use the best practices of both traditional Bininj/Mungguy culture and 'Western' science.

For more information on the culture of Kakadu visit:

https://parksaustralia.gov.au/kakadu/discover/culture/

or contact - Tourism & Visitor Services Unit
kakadu.permits@dcceew.gov.au

(08) 8938 1140

Kakadu National Park 2023